

1 ENGROSSED HOUSE
2 BILL NO. 2710

By: Ford of the House

3 and

4 Gollihare of the Senate

5
6 An Act relating to statewide radio systems; creating
7 the Oklahoma Emergency Communications Act; defining
8 terms; creating the Oklahoma Emergency Communications
9 Authority; providing for membership; providing for
10 the filling of vacancies and reaffirmation;
11 prohibiting compensation; requiring employment of
12 certain Executive Director; providing for funding of
13 the Executive Director; stating Authority shall be
14 subject to the Oklahoma Open Records Act and the
15 Oklahoma Open Meeting Act; stating powers and duties
16 of the Authority; creating the Oklahoma Emergency
17 Communications Authority Revolving Fund; stating type
18 of fund; stating purpose; authorizing expenditures;
19 amending 62 O.S. 2021, Section 34.11.1, as amended by
20 Section 1, Chapter 193, O.S.L. 2024 (62 O.S. Supp.
21 2024, Section 34.11.1), which relates to Chief
22 Information Officer; requiring Chief Information
23 Officer seek certain guidance and recommendations for
24 purchases; amending 62 O.S. 2021, Section 34.20,
which relates to the Information Services Division;
modifying responsible agency; amending 63 O.S. 2021,
Section 2862, as last amended by Section 146, Chapter
452, O.S.L. 2024 (63 O.S. Supp. 2024, Section 2862),
which relates to definitions; defining terms;
amending 63 O.S. 2021, Section 2864, as last amended
by Section 7, Chapter 258, O.S.L. 2023 (63 O.S. Supp.
2024, Section 2864), which relates to powers and
duties; modifying powers and duties of the Oklahoma
9-1-1 Management Authority; amending 74 O.S. 2021,
Section 51.1a, as last amended by Section 2, Chapter
257, O.S.L. 2024 (74 O.S. Supp. 2024, Section 51.1a),
which relates to interoperable public safety
communications planning; modifying responsible agency
requiring transfer of certain funds; repealing 62
O.S. 2021, Section 35.6.2, which relates to the Land
Mobile Radio Public Safety Interoperability

1 Cooperative; providing for codification; and
2 providing an effective date.

3
4 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

5 SECTION 1. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 2890 of Title 63, unless there
7 is created a duplication in numbering, reads as follows:

8 This act shall be known and may be cited as the "Oklahoma
9 Emergency Communications Act".

10 SECTION 2. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 2891 of Title 63, unless there
12 is created a duplication in numbering, reads as follows:

13 As used in the Oklahoma Emergency Communications Act:

14 1. "Authority" means the Oklahoma Emergency Communications
15 Authority created in Section 3 of this act;

16 2. "FCC" means the Federal Communications Commission; and

17 3. "Revolving fund" means the Oklahoma Emergency Communications
18 Authority Revolving Fund created in Section 6 of this act.

19 SECTION 3. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 2892 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 A. There is hereby created within the Department of Public
23 Safety the Oklahoma Emergency Communications Authority which shall
24

1 be the governing board providing oversight, development, and
2 regulation of state emergency communications systems.

3 B. The Authority shall be composed of the following fifteen
4 (15) members:

5 1. One member representing the Oklahoma Department of Public
6 Safety, to be appointed by the Commissioner of Public Safety;

7 2. One member representing the Oklahoma Department of
8 Transportation, to be appointed by the Secretary of Transportation;

9 3. One member representing forestry and state fire response, to
10 be appointed by the Commissioner of Agriculture;

11 4. One member representing the Office of Management and
12 Enterprise Services, to be appointed by the Chief Information
13 Officer;

14 5. One member representing the State Department of Health, to
15 be appointed by the State Commissioner of Health;

16 6. One member representing a statewide organization dedicated
17 to representing municipal law enforcement, to be appointed by the
18 President Pro Tempore of the Oklahoma State Senate;

19 7. One member representing a statewide organization dedicated
20 to representing county law enforcement, to be appointed by the
21 Oklahoma Sheriffs' Association;

22 8. One member representing a statewide organization dedicated
23 to representing fire service, to be appointed by the Governor;

1 9. One member representing a statewide organization dedicated
2 to representing Oklahoma municipalities, to be appointed by the
3 Speaker of the Oklahoma House of Representatives;

4 10. One member representing a statewide organization
5 representing Oklahoma county commissioners, to be appointed by the
6 Governor;

7 11. One member representing a statewide organization
8 representing radio communications, to be appointed by the President
9 Pro Tempore of the Oklahoma State Senate;

10 12. One member representing a statewide organization
11 representing emergency medical services, to be appointed by the
12 Governor;

13 13. One member representing a city or county that owns radio
14 infrastructure and allows state users to utilize the system for day-
15 to-day operations, to be appointed by the Speaker of the Oklahoma
16 House of Representatives;

17 14. The Oklahoma 9-1-1 Coordinator or his or her designee; and

18 15. One member representing the Inter-Tribal Council of the
19 Five Civilized Tribes, to be appointed by Governor.

20 C. Members may be removed for cause. Members shall serve at
21 the pleasure of their appointing authority and vacancies shall be
22 filled by the original appointing authority. Each Authority member
23 shall be reaffirmed every two (2) years from the date of
24 appointment.

1 D. Members shall receive no compensation for serving on the
2 Authority.

3 E. Eight members of the Authority shall constitute a quorum,
4 and the vote of the majority of the Authority member seats shall be
5 necessary for any action to be taken by the Authority.

6 F. The Department of Public Safety shall provide a dedicated
7 resource to the Emergency Communications Authority to carry out the
8 goals of the Authority and help coordinate between state and local
9 public safety agencies. The Authority and the Department of Public
10 Safety shall agree on the resource provided to the Authority.

11 G. The Authority shall elect a chair from its membership. The
12 Authority shall meet at least quarterly. However, the chair may
13 call a meeting of the Board as often as necessary to transact
14 business.

15 H. The Department of Public Safety shall provide staffing, a
16 proper meeting space, and any other such assistance as the Authority
17 may require.

18 I. The Authority shall be subject to the Oklahoma Open Records
19 Act and the Oklahoma Open Meeting Act.

20 SECTION 4. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 2893 of Title 63, unless there
22 is created a duplication in numbering, reads as follows:

23 The powers and duties of the Oklahoma Emergency Communications
24 Authority created in Section 3 of this act shall be to:

1 1. Approve or disapprove the dedicated resource provided by the
2 Department of Public Safety pursuant to subsection F of Section 3 of
3 this act by majority vote of the members;

4 2. Promulgate rules, through the authority of the Department of
5 Public Safety, as necessary to implement the provisions of the
6 Oklahoma Emergency Communications Act and for the governance and
7 operation of the Oklahoma Emergency Communications Authority;

8 3. Prepare grant solicitations for funding for the purposes of
9 assisting public agencies in joining a state-owned shared radio
10 system. This includes both infrastructure and radio subscribers;

11 4. Oversee state allocated funding and funding allocations
12 within the state and local public safety agencies for any radio
13 infrastructure;

14 5. Final approval of contracts necessary to administer and
15 maintain emergency radio systems owned by the State of Oklahoma;

16 6. Work in conjunction with all state and local public safety
17 agencies and the Oklahoma Department of Transportation to move all
18 funding, contracts, and personnel related to the state-owned radio
19 infrastructure, including communication tower infrastructure, to the
20 Department of Public Safety within two (2) years of the effective
21 date of this act;

22 7. Establish comprehensive user training for the state-owned
23 emergency radio systems;

1 8. Establish a strategic plan for the state emergency radio
2 systems to ensure optimal operability and interoperability for all
3 public safety responders in the state. The plan shall include, but
4 may not be limited to secondary public safety responders such as
5 employees of the Oklahoma Department of Transportation and schools;

6 9. Provide guidance to public agencies regarding emergency
7 radio communications;

8 10. Facilitate information-sharing among public agencies;

9 11. Create and maintain best practices databases for emergency
10 radio operations;

11 12. Facilitate the creation of policies and procedures between
12 state and local public agencies related to emergency radio
13 communications;

14 13. Encourage equipment and technology sharing among all
15 jurisdictions;

16 14. Facilitate data operability and interoperability between
17 public safety systems;

18 15. Provide oversight of the programming of the systems and
19 radios, including any software or keys necessary to operate on the
20 state radio systems;

21 16. Recommend standards to become compliant with Project 25 and
22 other common radio interoperability standards;

1 17. Enable cost savings to the State of Oklahoma through
2 unification and enhancement of current land mobile radio public
3 safety systems;

4 18. Seek public and private partnerships that enhance the
5 public safety radio network;

6 19. Manage, maintain, and seek funding for expansion of all
7 radio communications systems owned by the State of Oklahoma;

8 20. Create and maintain strategic plans for radio
9 communications for both state and local emergency services. The
10 strategic plan shall be updated annually and provided to the
11 President Pro Tempore of the Oklahoma State Senate, the Speaker of
12 the Oklahoma House of Representatives, and the Governor on or before
13 November 1 of each calendar year. The plan shall be publicly
14 available on the Oklahoma Department of Public Safety website and
15 shall be made available to anyone upon request. The plans shall
16 include details pertaining to the state-owned radio systems,
17 integration between state systems, and efficiencies implemented.
18 The plan shall also include both state and local public safety
19 agencies that are served, underserved, and unserved by state-owned
20 infrastructure;

21 21. Implement policies as needed to provide communications
22 operability and interoperability for local and state users;

23 22. Seek, apply for, and administer funding through grant
24 opportunities. The Authority shall approve all emergency

1 communications grants that are issued by any source within the
2 Oklahoma Department of Public Safety to recipients or subrecipients,
3 including internal grant funding provided to state and local public
4 safety departments or agencies;

5 23. Ensure that all communications and radio technology,
6 programming, and maintenance meet Federal Communications Commission
7 (FCC) rules and regulations;

8 24. Maintain Geographic Information System (GIS) data:

9 a. required for the various radio systems used by local
10 agencies,

11 b. that is a secured GIS dataset that is for official use
12 only, that, at a minimum, includes frequencies, if
13 encryption is in use, and the type of system in use,
14 and

15 c. necessary to carry out the mission of the Oklahoma
16 Emergency Communications Authority;

17 25. Provide resources to assist local municipal or county
18 emergency services in the procurement of radio infrastructure to
19 ensure FCC regulations are maintained. This includes providing
20 assistance to such emergency services for increasing or adding to
21 state-owned infrastructure to allow for operability needs;

22 26. Provide strategic planning and seek funding to ensure radio
23 tower infrastructure meets FCC rules; and
24

1 27. Provide training necessary to ensure local and state users
2 of public safety systems can provide emergency assistance
3 efficiently in order to mitigate the loss of life and property.

4 SECTION 5. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 2895 of Title 63, unless there
6 is created a duplication in numbering, reads as follows:

7 There is hereby created in the State Treasury a revolving fund
8 for the Oklahoma Emergency Communications Authority to be designated
9 the "Oklahoma Emergency Communications Authority Revolving Fund".
10 The fund shall be a continuing fund, not subject to fiscal year
11 limitations, and shall consist of all monies received from state
12 appropriations. All monies accruing to the credit of the fund are
13 hereby appropriated and may be budgeted and expended by the Oklahoma
14 Emergency Communications Authority, for the purpose of supporting
15 the administration of the Oklahoma Emergency Communications Act.
16 Expenditures from the fund shall be made upon warrants issued by the
17 State Treasurer against claims filed as prescribed by law with the
18 Director of the Office of Management and Enterprise Services for
19 approval and payment.

20 SECTION 6. AMENDATORY 62 O.S. 2021, Section 34.11.1, as
21 amended by Section 1, Chapter 193, O.S.L. 2024 (62 O.S. Supp. 2025,
22 Section 34.11.1), is amended to read as follows:

23 Section 34.11.1. A. There is hereby created the position of
24 Chief Information Officer who shall be appointed by the Governor.

1 The Chief Information Officer, in addition to having authority over
2 the Information Services Division of the Office of Management and
3 Enterprise Services, shall also serve as Secretary of Information
4 Technology and Telecommunications or successor cabinet position and
5 shall have jurisdictional areas of responsibility related to
6 information technology and telecommunications systems of all state
7 agencies as provided for in state law. ~~The salary of the Chief~~
8 ~~Information Officer shall not be less than One Hundred Thirty~~
9 ~~Thousand Dollars (\$130,000.00) or more than One Hundred Sixty~~
10 ~~Thousand Dollars (\$160,000.00).~~

11 B. Any person appointed to the position of Chief Information
12 Officer shall meet the following eligibility requirements:

13 1. A baccalaureate degree in Computer Information Systems,
14 Information Systems or Technology Management, Business
15 Administration, Finance, or other similar degree;

16 2. A minimum of ten (10) years of professional experience with
17 responsibilities for management and support of information systems
18 and information technology, including seven (7) years of direct
19 management of a major information technology operation;

20 3. Familiarity with local and ~~wide-area~~ wide area network
21 design, implementation, and operation;

22 4. Experience with data and voice convergence service
23 offerings;

24 5. Experience in developing technology budgets;

1 6. Experience in developing requests for proposal and
2 administering the bid process;

3 7. Experience managing professional staff, teams, and
4 consultants;

5 8. Knowledge of telecommunications operations;

6 9. Ability to develop and set strategic direction for
7 information technology and telecommunications and to manage daily
8 development and operations functions;

9 10. An effective communicator who is able to build consensus;

10 11. Ability to analyze and resolve complex issues, both logical
11 and interpersonal;

12 12. Effective verbal and written communications skills and
13 effective presentation skills, geared toward coordination and
14 education;

15 13. Ability to negotiate and defuse conflict; and

16 14. A self-motivator, independent, cooperative, flexible and
17 creative.

18 C. The salary and any other expenses for the Chief Information
19 Officer shall be budgeted as a separate line item through the Office
20 of Management and Enterprise Services. The operating expenses of
21 the Information Services Division shall be set by the Chief
22 Information Officer and shall be budgeted as a separate line item
23 through the Office of Management and Enterprise Services. The
24 Office of Management and Enterprise Services shall provide adequate

1 office space, equipment and support necessary to enable the Chief
2 Information Officer to carry out the information technology and
3 telecommunications duties and responsibilities of the Chief
4 Information Officer and the Information Services Division.

5 D. 1. Within twelve (12) months of appointment, the first
6 Chief Information Officer shall complete an assessment, which shall
7 be modified annually pursuant to Section 35.5 of this title, of the
8 implementation of the transfer, coordination, and modernization of
9 all information technology and telecommunication systems of all
10 state agencies in the state as provided for in the Oklahoma
11 Information Services Act. The assessment shall include the
12 information technology and telecommunications systems of all
13 institutions within The Oklahoma State System of Higher Education,
14 the Oklahoma State Regents for Higher Education and the
15 telecommunications network known as OneNet as assembled and
16 submitted by the Oklahoma Higher Education Chief Information
17 Officer, as designated by the Oklahoma State Regents for Higher
18 Education.

19 2. Within twelve (12) months of appointment, the first Chief
20 Information Officer shall issue a report setting out a plan of
21 action which will include the following:

22 a. define the shared service model organization structure
23 and the reporting relationship of the recommended
24 organization,

- 1 b. the implementation of an information technology and
2 telecommunications shared services model that defines
3 the statewide infrastructure environment needed by
4 most state agencies that is not specific to individual
5 agencies and the shared applications that are utilized
6 across multiple agencies,
- 7 c. define the services that shall be in the shared
8 services model under the control of the Information
9 Services Division of the Office of Management and
10 Enterprise Services,
- 11 d. define the roadmap to implement the proposed shared
12 services model. The roadmap shall include
13 recommendations on the transfer, coordination, and
14 modernization of all information technology and
15 telecommunication systems of all the state agencies in
16 the state,
- 17 e. recommendations on the reallocation of information
18 technology and telecommunication resources and
19 personnel,
- 20 f. a cost_benefit analysis to support the recommendations
21 on the reallocation of information technology and
22 telecommunication resources and personnel,
- 23 g. a calculation of the net savings realized through the
24 reallocation and consolidation of information

1 technology and telecommunication resources and
2 personnel after compensating for the cost of
3 contracting with a private consultant as authorized in
4 paragraph 4 of this subsection, implementing the plan
5 of action, and ongoing costs of the Information
6 Services Division of the Office of Management and
7 Enterprise Services, and

8 h. the information required in subsection B of Section
9 35.5 of this title.

10 3. The plan of action report shall be presented to the
11 Governor, Speaker of the Oklahoma House of Representatives, and the
12 President Pro Tempore of the Oklahoma State Senate.

13 4. The Chief Information Officer may contract with a private
14 consultant or consultants to assist in the assessment and
15 development of the plan of action report as required in this
16 subsection.

17 E. The Chief Information Officer shall be authorized to employ
18 personnel, fix the duties and compensation of the personnel, not
19 otherwise prescribed by law, and otherwise direct the work of the
20 personnel in performing the ~~function~~ functions and accomplishing the
21 purposes of the Information Services Division of the Office of
22 Management and Enterprise Services.

1 F. The Information Services Division of the Office of
2 Management and Enterprise Services shall be responsible for the
3 following duties:

4 1. Formulate and implement the information technology strategy
5 for all state agencies;

6 2. Define, design, and implement a shared services statewide
7 infrastructure and application environment for information
8 technology and telecommunications for all state agencies;

9 3. Direct the development and operation of a scalable
10 telecommunications infrastructure that supports data and voice
11 communications reliability, integrity, and security;

12 4. Supervise the applications development process for those
13 applications that are utilized across multiple agencies;

14 5. Provide direction for the professional development of
15 information technology staff of state agencies and oversee the
16 professional development of the staff of the Information Services
17 Division of the Office of Management and Enterprise Services;

18 6. Evaluate all technology and telecommunication investment
19 choices for all state agencies;

20 7. Create a plan to ensure alignment of current systems, tools,
21 and processes with the strategic information technology plan for all
22 state agencies;

23 8. Set direction and provide oversight for the support and
24 continuous upgrading of the current information technology and

1 telecommunication infrastructure in the state in support of enhanced
2 reliability, user service levels, and security;

3 9. Direct the development, implementation, and management of
4 appropriate standards, policies and procedures to ensure the success
5 of state information technology and telecommunication initiatives;

6 10. Recruit, hire and transfer the required technical staff in
7 the Information Services Division of the Office of Management and
8 Enterprise Services to support the services provided by the Division
9 and the execution of the strategic information technology plan;

10 11. Establish, maintain, and enforce information technology and
11 telecommunication standards;

12 12. Delegate, coordinate, and review all work to ensure quality
13 and efficient operation of the Information Services Division of the
14 Office of Management and Enterprise Services;

15 13. Create and implement a communication plan that disseminates
16 pertinent information to state agencies on standards, policies,
17 procedures, service levels, project status, and other important
18 information to customers of the Information Services Division of the
19 Office of Management and Enterprise Services and provide for agency
20 feedback and performance evaluation by customers of the Division;

21 14. Develop and implement training programs for state agencies
22 using the shared services of the Information Services Division of
23 the Office of Management and Enterprise Services and recommend
24

1 training programs to state agencies on information technology and
2 telecommunication systems, products and procedures;

3 15. Provide counseling, performance evaluation, training,
4 motivation, discipline, and assign duties for employees of the
5 Information Services Division of the Office of Management and
6 Enterprise Services;

7 16. For all state agencies, approve the purchasing of all
8 information technology and telecommunication services and approve
9 the purchase of any information technology and telecommunication
10 product except the following:

11 a. a purchase less than or equal to Five Thousand Dollars
12 (\$5,000.00) if such product is purchased using a state
13 purchase card and the product is listed on either the
14 Approved Hardware or Approved Software list located on
15 the Office of Management and Enterprise Services
16 website, or

17 b. a purchase over Five Thousand Dollars (\$5,000.00) and
18 less than or equal to Twenty-five Thousand Dollars
19 (\$25,000.00) if such product is purchased using a
20 state purchase card, the product is listed on an
21 information technology or telecommunications statewide
22 contract, and the product is listed on either the
23 Approved Hardware or Approved Software list located on
24

1 the Office of Management and Enterprise Services
2 website;

3 17. Develop and enforce an overall infrastructure architecture
4 strategy and associated roadmaps for desktop, network, server,
5 storage, and statewide management systems for state agencies;

6 18. Effectively manage the design, implementation and support
7 of complex, highly available infrastructure to ensure optimal
8 performance, on-time delivery of features, and new products, and
9 scalable growth;

10 19. Define and implement a governance model for requesting
11 services and monitoring service level metrics for all shared
12 services; and

13 20. Create the budget for the Information Services Division of
14 the Office of Management and Enterprise Services to be submitted to
15 the Legislature each year.

16 G. The State Governmental Technology Applications Review Board
17 shall provide ongoing oversight of the implementation of the plan of
18 action required in subsection D of this section. Any proposed
19 amendments to the plan of action shall be approved by the Board
20 prior to adoption.

21 H. 1. The Chief Information Officer shall act as the
22 Information Technology and Telecommunications Purchasing Director
23 for all state agencies and shall be responsible for the procurement
24 of all information technology and telecommunication software,

1 hardware, equipment, peripheral devices, maintenance, consulting
2 services, high technology systems, and other related information
3 technology, data processing, telecommunication and related
4 peripherals and services for all state agencies. The Chief
5 Information Officer shall establish, implement, and enforce policies
6 and procedures for the procurement of information technology and
7 telecommunication software, hardware, equipment, peripheral devices,
8 maintenance, consulting services, high technology systems, and other
9 related information technology, data processing, telecommunication
10 and related peripherals and services by purchase, lease-purchase,
11 lease with option to purchase, lease and rental for all state
12 agencies. The procurement policies and procedures established by
13 the Chief Information Officer shall be consistent with ~~The~~ the
14 Oklahoma Central Purchasing Act.

15 2. The Chief Information Officer, or any employee or agent of
16 the Chief Information Officer acting within the scope of delegated
17 authority, shall have the same power and authority regarding the
18 procurement of all information technology and telecommunication
19 products and services as outlined in paragraph 1 of this subsection
20 for all state agencies as the State Purchasing Director has for all
21 acquisitions used or consumed by state agencies as established in
22 ~~The~~ the Oklahoma Central Purchasing Act. Such authority shall,
23 consistent with the authority granted to the State Purchasing
24 Director pursuant to Section 85.10 of Title 74 of the Oklahoma

1 Statutes, include the power to designate financial or proprietary
2 information submitted by a bidder confidential and reject all
3 requests to disclose the information so designated, if the Chief
4 Information Officer requires the bidder to submit the financial or
5 proprietary information with a bid, proposal, or quotation.

6 3. The Chief Information Officer or any employee or agent,
7 pursuant to paragraph 2 of this subsection, shall seek guidance and
8 recommendations from the Oklahoma Emergency Communications Authority
9 for all purchases related to public safety communications.

10 4. When available, state-owned fiber shall be used to support
11 the Oklahoma Emergency Communications Authority duties and
12 responsibilities.

13 I. The Information Services Division of the Office of
14 Management and Enterprise Services and the Chief Information Officer
15 shall be subject to the Oklahoma Central Purchasing Act for the
16 approval and purchase of all equipment, products, and services and
17 shall also be subject to the requirements of the Public Competitive
18 Bidding Act of 1974, the Oklahoma Lighting Energy Conservation Act
19 and the Public Building Construction and Planning Act. The Chief
20 Information Officer shall be authorized to delegate all or some of
21 the procurement of information technology and telecommunication
22 products and services and construction of facilities and
23 telecommunication networks to another state entity if the Chief
24 Information Officer determines it to be cost-effective and in the

1 best interest of the state. The Chief Information Officer shall
2 have authority to designate information technology and
3 telecommunication contracts as statewide contracts and mandatory
4 statewide contracts pursuant to Section 85.5 of Title 74 of the
5 Oklahoma Statutes and to negotiate consolidation contracts,
6 enterprise agreements and high technology systems contracts. Any
7 contract entered into by a state agency for which the Chief
8 Information Officer has not acted as the Information Technology and
9 Telecommunications Purchasing Director, as required in this
10 subsection or subsection H of this section, shall be deemed to be
11 unenforceable and the Office of Management and Enterprise Services
12 shall not process any claim associated with the provisions thereof.

13 J. The Chief Information Officer shall establish, implement,
14 and enforce policies and ~~procedure~~ procedures for the development
15 and procurement of an interoperable radio communications system for
16 state agencies. The Chief Information Officer shall work with local
17 governmental entities in developing the interoperable radio
18 communications system.

19 K. The Chief Information Officer shall develop and implement a
20 plan to utilize open source technology and products for the
21 information technology and telecommunication systems of all state
22 agencies.

23 L. All state agencies and authorities of this state and all
24 officers and employees of those entities shall work and cooperate

1 with and lend assistance to the Chief Information Officer and the
2 Information Services Division of the Office of Management and
3 Enterprise Services and provide any and all information requested by
4 the Chief Information Officer.

5 M. The Chief Information Officer shall prepare an annual report
6 detailing the ongoing net ~~saving~~ savings attributable to the
7 reallocation and consolidation of information technology and
8 telecommunication resources and personnel and shall submit the
9 report to the Governor, the Speaker of the Oklahoma House of
10 Representatives, and the President Pro Tempore of the Oklahoma State
11 Senate.

12 N. For purposes of the Oklahoma Information Services Act,
13 unless otherwise provided for, "state agencies" shall include any
14 office, officer, bureau, board, commission, counsel, unit, division,
15 body, authority or institution of the executive branch of state
16 government, whether elected or appointed; provided, except with
17 respect to the provisions of subsection D of this section, the term
18 "state agencies" shall not include institutions within The Oklahoma
19 State System of Higher Education, the Oklahoma State Regents for
20 Higher Education and the telecommunications network known as OneNet.

21 O. As used in this section:

22 1. "High technology system" means advanced technological
23 equipment, software, communication lines, and services for the
24 processing, storing, and retrieval of information by a state agency;

1 2. "Consolidation contract" means a contract for several state
2 or public agencies for the purpose of purchasing information
3 technology and telecommunication goods and services; and

4 3. "Enterprise agreement" means an agreement for information
5 technology or telecommunication goods and services with a supplier
6 who manufactures, develops and designs products and provides
7 services that are used by one or more state agencies.

8 SECTION 7. AMENDATORY 62 O.S. 2021, Section 34.20, is
9 amended to read as follows:

10 Section 34.20. In addition to the powers and duties as defined
11 elsewhere in this title, the Information Services Division of the
12 Office of Management and Enterprise Services shall:

13 1. Coordinate statewide planning and approve statewide
14 contracts for communication and telecommunications needs of state
15 agencies, including, but not limited to, voice, data, radio
16 including the interoperable radio communications system for state
17 agencies, video, broadband, Wi-Fi or wireless networking, Global
18 Positioning Systems (GPS), Internet, eGovernment, as referenced in
19 Sections 34.24 and 34.25 of this title, and facsimile transmissions
20 through analysis of the telecommunications and information
21 technology plan of each agency;

22 2. In coordination with the Oklahoma ~~Office of Homeland~~
23 ~~Security~~ Emergency Communications Authority, establish minimum
24 mandatory standards and protocols for:

- a. communication networks and equipment,
- b. wide area and local area systems,
- c. integration of equipment, systems and joint usage,
- d. Internet and eGovernment,
- e. operating systems or methods to be used to meet communications requirements efficiently, effectively, and securely,
- f. rendering of aid between state government and its political subdivisions with respect to organizing of communications systems, and
- g. an economical and cost-effective utilization of communication services.

The standards and protocols shall be compatible with the standards and protocols established for the Oklahoma Government Telecommunications Network;

3. Serve as a focal point for all statewide projects and approve all statewide contracts for state agencies involving current communications vendors where the focus of such authority can substantially enhance the state communications plan or the savings which can be achieved thereunder;

4. Provide, when requested by political subdivisions of the state, for the organizing of communications or telecommunications systems and service between the state and its political subdivisions and enter into agreements to effect the purposes of this section;

1 5. Cooperate with any federal, state or local emergency
2 management agency in providing for emergency communications and
3 telecommunication services;

4 6. Apply for, receive, and hold, or assist agencies in applying
5 for, receiving or holding, such authorizations, licenses and
6 allocations of channels and frequencies to carry out the purposes of
7 this section;

8 7. Accomplish such other purposes as may be necessary or
9 incidental to the administration of its authority or functions
10 pursuant to law; and

11 8. Provide support for telecommunication networks of state
12 agencies through analysis of the telecommunications needs and
13 requirements of each agency and promotion of the use of the Oklahoma
14 Government Telecommunications Network.

15 SECTION 8. AMENDATORY 74 O.S. 2021, Section 51.1a, as
16 last amended by Section 2, Chapter 257, O.S.L. 2024 (74 O.S. Supp.
17 2025, Section 51.1a), is amended to read as follows:

18 Section 51.1a. A. In addition to the powers and duties as
19 defined elsewhere in statute, the Office of Homeland Security has
20 the duty and responsibility for interoperable public safety
21 communications planning within this state. As part of this duty,
22 the Office of Homeland Security shall:

23 1. Annually develop and electronically report to the Governor,
24 President Pro Tempore of the Oklahoma State Senate, and Speaker of

1 the Oklahoma House of Representatives, the Statewide Communications
2 Interoperability Plan as part of the strategic plan required
3 pursuant to Section 4 of this act;

4 2. Coordinate statewide planning for public safety
5 communication needs of state government and state emergency
6 responders, including a migration plan for state agency use of
7 public safety communications technologies and rendering of aid
8 between state government and its political subdivisions for
9 organizing and use of disparate public safety communications
10 systems;

11 3. Serve as a focal point for all state-level projects
12 involving public safety communications vendors where the focus of
13 such authority can substantially enhance the state communications
14 plan or savings;

15 4. Apply for, receive and hold, or assist state agencies in
16 applying for, receiving or holding, such authorizations, licenses,
17 and allocations of channels and frequencies to carry out the
18 purposes of this section;

19 5. Establish minimum standards and protocols for the
20 acquisition, development, or enhancement of public safety
21 communications technologies. These standards shall be utilized by
22 the Information Services Division of the Office of Management and
23 Enterprise Services pursuant to the provisions of Section 34.20 of
24 Title 62 of the Oklahoma Statutes; and

1 6. Accomplish such other purposes as may be necessary or
2 incidental to the administration of its authority or functions
3 pursuant to law.

4 B. It is the intent of the Legislature that all state public
5 entities comply with the provisions of the Statewide Communications
6 Interoperability Plan issued by the Office of Homeland Security.
7 All state agencies are required to review the provisions of the
8 Statewide Communications Interoperability Plan and the public safety
9 communications standards issued by the Office of Homeland Security
10 prior to the purchase, acquisition, development, or enhancement of
11 any public safety communications system. Local public safety
12 agencies and political subdivisions of the state are encouraged, but
13 not required, to review the provisions of the Statewide
14 Communications Interoperability Plan and the public safety
15 communications standards issued by the Office of Homeland Security
16 prior to the purchase, acquisition, development, or enhancement of
17 any public safety communications system to assist the local public
18 safety agency or political subdivision in purchasing decisions.

19 C. ~~No~~ The Office of Homeland Security shall ensure that all
20 federal and state grant funding for radio and data communications
21 meets the State Strategic Communications Plan that is approved by
22 the Oklahoma Emergency Communications Authority.

23 D. Unless approved by the Oklahoma Emergency Communications
24 Authority, no state agency shall use state funds or enter into any

1 agreement for the acquisition, development, or enhancement of a
2 public safety communication system and unless the request is
3 consistent with the Statewide Communications Interoperability Plan
4 and the public safety communications standards issued by the Office
5 of Homeland Security.

6 SECTION 9. REPEALER 62 O.S. 2021, Section 35.6.2, is
7 hereby repealed.

8 SECTION 10. This act shall become effective November 1, 2026.

9 Passed the House of Representatives the 25th day of March, 2026.

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Presiding Officer of the House
of Representatives

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14 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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